

Michigan and Federal Fair Housing

STUDY SHEET

Compliance with Federal Fair Housing Laws

- The Department of Housing and Urban Development enforces the Fair Housing Act at a national level.
- If victims of discrimination want to take action, they must either file a complaint with HUD or initiate a civil suit within one year of the event.
- Fines levied by civil court may include civil penalties up to \$10,000 for a first offense, \$25,000 for a subsequent violation within five years, and \$50,000 if three or more violations occur within a seven-year period. For multiple violations, a person may be fined \$25,000 or \$50,000 without time limits.

Michigan Fair Housing

- The federal definition of a disability covers those with mental, as well as physical, impairments.
- Every reasonable accommodation should be made to allow persons with disabilities to experience equal access to housing and be able to enjoy the housing and related facilities as any other person can.
- The Michigan Persons with Disabilities Civil Rights Act and the U.S. Fair Housing Act protect the general public and protected classes from discriminatory housing practices in the sale, rental, and financing of dwellings based on race, color, national origin, religion, sex, physical or mental disability, or familial status, including pregnant women.

Fair Housing Workshop

- The use of "Choose Your Neighbor" letters is not a per se violation of Article 10, but NAR cautions that such letters could be used in a manner inconsistent with the intent of Article 10.
- Letting neighbors have input into who might be interested in a property is fine, as long as advertising reaches out to all potential purchasers.
- Mobile home communities and RV parks are subject to federal fair housing laws.

Federal Fair Housing Laws

Race, color, religion, disability, sex, familial status, and national origin are federally protected classes for fair housing